

Delaware County Commissioners Meeting April 15th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=ajhPH6225ac
Publication Date	2024-04-16T01:51:01Z
Target Category	delaware_county

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Delaware County Commissioner's Meeting Summary

Meeting Date: April 15, 2024

Time: 9:00 AM

1. Pre-Meeting Hearings & Committee Work Sessions

(No statutory public hearings or committee work sessions were held immediately prior to calling the regular meeting to order.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at 9:00 AM on Monday, April 15, 2024, by the presiding officer of the Delaware County Commissioners.
- **Attendance:**
 - Presiding Officer / Board Members present: Mr. Henry, Ms. Reagan, and Mr. King.
 - Members Absent: None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
 - **Approval of Minutes:**
 - Board members voted to remove the February 20th and March 4th minutes from being tabled, and subsequently voted to adopt/approve them. *(Roll call vote: Passed unanimously)*
 - The minutes from the April 1, 2024 commissioners' meeting were tabled for further review. *(Roll call vote: Passed unanimously)*
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4. Substantive Business & Board Action

- **00:06:08 Public Hearing: Muncie Land Bank**
 - **Sponsor / Presenter:** Presiding Board / Local Officials.
 - **Deliberation Summary:** Opened a public hearing for the Muncie Land Bank. Hearing no comments for or against, a motion was made and seconded to close the hearing.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Public hearing closed. *(Roll call vote: Passed unanimously)*
- **00:06:38 Appointments: Board of Zoning Appeals**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** The board discussed holding off on appointments to find more candidates across all county boards.
 - **Action & Vote Disposition:** Tabled. *(Roll call vote: Passed unanimously)*
- **00:08:29 Presentation & Proclamation: Memorializing Marta Moody**
 - **Sponsor / Presenter:** Senator Alexander and local officials.
 - **Deliberation Summary:** A video presentation and tribute were presented celebrating the life, career, and legacy of Marta Moody, former executive director of the Delaware-Muncie Metropolitan Planning Commission. State Senate Concurrent Resolution 14 was read into the record memorializing her 44 years of public service, educational partnerships with Ball State University, and leadership in regional planning and GIS development.
 - **Board Action:** Approved a motion to frame the resolution to hang outside the Planning Commission office, rename Planning Commission Room 206 to the "Marta Moody Room," and install a commemorative plaque. *(Roll call vote: Passed unanimously)*
- **00:23:55 Contracts & Agreements: Nixon Industrial Park & Braden Subdivision Plats**
 - **Sponsor / Presenter:** County engineering/planning staff.

- **Deliberation Summary:** Presented two plats dedicating road right-of-ways: the Nixon Industrial Park plat (covering part of Cowan Road and Progress Boulevard, with construction funds already set aside) and the Braden Subdivision plat on Highway 35 (additional right-of-way to fit the thoroughfare plan).
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
- **00:25:24 INDOT LPA Project Coordination Contract**
 - **Sponsor / Presenter:** Andy (County Staff).
 - **Deliberation Summary:** Presented a Supplemental SP&L contract utilizing Group 3 federal funds for a bridge project (Bridge 145) heading to letting in July, with construction to be conducted under traffic.
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
- **00:26:21 LPA Consulting Contract (Bridge 112)**
 - **Sponsor / Presenter:** Andy (County Staff).
 - **Deliberation Summary:** Supplemental consulting contract for Bridge 112 located on 600 South at Williams Creek, totaling an additional \$3,375 for added permitting requirements and bridge design adjustments.
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
- **00:27:46 AT&T Internet Service Contract**
 - **Sponsor / Presenter:** Mr. Bowers.
 - **Deliberation Summary:** Presented a 3-year AT&T contract agreement for internet service to the county building and Justice Center. The agreement increases bandwidth at the Justice Center from 500 Meg to 1,000 Meg while actually lowering monthly costs from \$3,228 to \$2,399.
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
- **00:30:03 Notice to Bidders: Delaware County Farm Ground**
 - **Sponsor / Presenter:** County Staff / Commissioners.
 - **Deliberation Summary:** Reviewed notice to take bids for farm ground around the Justice Center. Adjusted the bid submission deadline time from 8:30 AM to 8:45 AM on May 3rd to allow bidders time to clear building security.
 - **Action & Vote Disposition:** Approved with time modification. *(Roll call vote: Passed unanimously)*
- **00:30:44 Acknowledgement and Assumption Agreement (Living Green Farms)**
 - **Sponsor / Presenter:** John / Board Staff.
 - **Deliberation Summary:** Brief legal review and presentation regarding the Living Green Farms agreement and building obligations.
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
- **00:31:29 Emergency Ordinance: Bridge 51 Weight Limit**
 - **Sponsor / Presenter:** County Commissioners / Staff.
 - **Deliberation Summary:** First reading of an emergency ordinance to limit weight and commercial truck traffic on Bridge 51 on Mallard Road at Kilbuck Creek down to 3 tons until a replacement deck can be installed.

- **Action & Vote Disposition:** Rules were suspended, and the ordinance was formally adopted. *(Roll call vote: Passed unanimously)*
 - **00:32:45 Ordinance Second Reading: Zoning Text Amendment (Solar Energy Setbacks)**
 - **Sponsor / Presenter:** Planning Department Staff.
 - **Deliberation Summary:** Second reading of an ordinance amending Article 31, Section 13 (D2 and D3) of the Delaware County Comprehensive Zoning Ordinance. The amendment corrects a clerical oversight from a November vote, changing a remaining 250-foot setback reference to 500 feet to properly correlate with previously approved changes. Received a favorable recommendation from the plan commission.
 - **Action & Vote Disposition:** Approved. *(Roll call vote: Passed unanimously)*
 - **00:35:08 Resolution: Tax Sale Certificate Transfers to Nonprofits**
 - **Sponsor / Presenter:** County Staff / Nate.
 - **Deliberation Summary:** Final determination resolution to transfer certain tax sale certificates for properties to nonprofit entities pursuant to Indiana code. The board reviewed updated, handwritten corrections to Exhibit A regarding parcel number discrepancies identified prior to the meeting.
 - **Action & Vote Disposition:** Approved with corrected exhibits. *(Roll call vote: Passed unanimously)*
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5. Open Public Comment / Citizen Forum

(No members of the public signed up or spoke during the general public comment period near the conclusion of the meeting.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **911 / Dispatch:** Recognized National Telecommunicator Week, praising the county's dispatch staff.
 - **Highway & Grants:** Announced two recent grant awards: an IDEM Waste Tire Grant to reimburse county highway expenses for illegal tire pickups, and a \$1.5 million Community Crossings Matching Grant for county road paving (contract and list to be posted by Kyle).
 - **Town of Selma Property Inquiry:** Discussed a small property request at 115 South Albany (Selma) for potential transfer, modeled after the Muncie Land Bank process.
- **Claims:** Payment of general claims in the amount of \$1,187,188.15 and art claims in the amount of \$3,556.47 were approved. *(Roll call vote: Passed unanimously)*

- **Adjournment:** With no further business, the meeting was officially recessed/adjourned.
(Roll call vote: *Passed unanimously*)
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